The 5 Questions to Ask Testifying Experts About AI



Ready to Ask the Right Questions?

This checklist helps attorneys evaluate how testifying experts are using AI. It promotes transparency, defensibility, and credibility in every report and deposition.

Protect your testimony. Validate your evidence. Stay ahead in the AI era.

1. Did you use an AI tool in preparing your expert report?

If yes, what kind of tool?

- ☐ **Open Source (transparent, but check for data exposure risks)**
- ☐ **Closed Source (secure, but be ready to explain "black-box" logic)**
- ☐ **Proprietary (reliable if validated)**

Why it matters: Transparency builds credibility and defends methodology.

- ☐ **Identify whether AI assisted with research, analysis, or drafting**
- ☐ **Clarify if outputs were human-led or machine-assisted**
- ☐ **Document every step for defensibility and reproducibility**

2. Was AI used to formulate your opinions, or just to validate them?

Why it matters: This distinction defines the expert's role.

- ☐ **Distinguish judgment from automation**
- ☐ **Outline where human reasoning guided conclusions**
- ☐ **Demonstrate oversight, not dependence**

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3. Can you describe the tools you used with high competency?

Why it matters: Courts need a clear understanding of AI's role.

- ☐ Explain technical steps in plain English
- ☐ Anticipate questions under new Federal Rules of Evidence
- ☐ Show that you remain the authority, not the algorithm

4. Was the information you entered used to train the AI model?

Why it matters: Confidential inputs can unintentionally become public.

- ☐ Confirm model settings for data privacy and retention
- ☐ Avoid inputting privileged or identifying details
- ☐ Document how proprietary data was protected

5. Have you checked all citations back to their original sources?

Why it matters: AI can fabricate or misattribute references.

- ☐ Manually verify every citation against primary sources
- ☐ Flag and replace AI-generated inaccuracies
- ☐ Strengthen the credibility of your testimony

Clear answers to these five questions protect your case's credibility and show that your team is ready for the AI era.

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